



May 10, 2023

BY ELECTRONIC FILING

Marlene H. Dortch
Secretary
Federal Communications Commission
45 L Street, N.E.
Washington, DC 20554

Re: *ICFS File Nos. SAT-MOD-20070919-00129 (Call Sign S2651); SAT-MOD-20230207-00022*

Dear Ms. Dortch:

DBSD's market access rights came in with a bang but have gone out with a whimper, with DISH quietly allowing its satellite authorization to expire on May 9. Unfortunately, DBSD's rights expire the same way they started—with a fallow 2 GHz band and a non-existent Mobile-Satellite Service ("MSS"). For fifteen years DBSD has been authorized—and obligated¹—to deploy satellite service in the United States. But rather than comply with the terms of its authorization, DBSD warehoused valuable 2 GHz spectrum while denying mobile satellite connectivity to American consumers. The Commission should not allow DBSD to continue to squander this valuable spectrum, particularly when other operators are prepared to bring critical mobile satellite services to Americans everywhere. SpaceX has filed its own application for authority to launch and operate a 2 GHz MSS system and is motivated and capable of finally realizing the Commission's intent for mobile satellite use of the band.² Accordingly, now that DBSD has knowingly allowed its satellite authorization to expire,³ the Commission should expeditiously grant SpaceX's application. Should DBSD seek an untimely extension of its access rights, the Commission should reject it, since DBSD never used its rights to provide service in the first place.

DBSD's longstanding failure to provide MSS in the United States is well documented. Just a year after launching its single GSO satellite in 2008, DBSD admitted in bankruptcy proceedings that it had no plans to provide the commercial satellite service for which it was authorized.⁴ Even after DISH Network Corporation ("DISH") acquired DBSD, it never began MSS operations. In fact, in 2012—four years into the initial term of DBSD's authorization—the full Commission

¹ See 47 C.F.R. 25.161(c).

² See Application for Modification of Authorization for the SpaceX Gen2 NGSO Satellite System to Add a Mobile-Satellite Service System, IBFS File No. SAT-MOD-20230207-00022 (Feb. 7, 2023).

³ DBSD certified that its lone 2 GHz MSS satellite commenced operations at the 92.85° orbital location on May 9, 2008. See Letter from Suzanne Hutchings Malloy to Marlene H. Dortch, IBFS File No. SAT-LOI-19970926-00163 (May 9, 2008). Accordingly, its U.S. market access authorization expired 15 years later, or May 9, 2023. See 47 C.F.R. § 25.121(a)(1).

⁴ See Bench Decision on Confirmation, DBSD North America, Inc., Case No. 09-13061 (REG), at 7, 12-14 (Bankr. S.D.N.Y. issued Oct. 26, 2009).

noted that “[d]espite having MSS and ATC [Ancillary Terrestrial Component] authority and an orbiting satellite, *DBSD never offered either commercial satellite or terrestrial service*,”⁵ notwithstanding DBSD’s false certification that its satellite had already begun operations.⁶ Even as DISH claimed to begin its own terrestrial network buildout, an MSS service was perpetually absent from all reports and disclosures.⁷ Now over a decade later, DBSD’s satellite authorization has expired without ever having provided an MSS offering to American consumers. Indeed, DISH’s most recent annual report:

1. omits any discussion or evidence of a commercial MSS service in the United States;
2. lists the DBSD satellite’s estimated fair value at zero;
3. presents the useful lifetime of the MSS satellite “operated” by DBSD as “N/A;” and
4. lacks any disclosure of an agreement to build or launch a replacement MSS satellite.⁸

Not only has DBSD never provided an MSS service to the American public, it also appears that it never intends to do so.

DBSD’s inability or unwillingness to send a single packet of information to a mobile device in the United States conflicts with its core obligation as an authorized MSS system—to actually provide an MSS service in the United States. Section 25.161(c) of the Commission’s rules specifies that any station “shall be automatically terminated” where “the station is not operational for more than 90 days.” DBSD’s non-existent MSS service exceeded this timeline nearly *sixty times* over, while valuable 2 GHz spectrum resources lay fallow to the detriment of American consumers. While the Commission should have already terminated DBSD’s market access authorization years ago, the expiration of DBSD’s authorization finally ends this charade.

Additionally, any suggestion by DISH that it can transform the 2 GHz band into primarily terrestrial spectrum is incontrovertibly false. When the Commission authorized DISH’s terrestrial use of the 2 GHz band for Advanced Wireless Services (“AWS”), it did so by *modifying* the 2 GHz satellite rights DISH acquired from DBSD and Gamma Acquisition, L.L.C. (then known as TerreStar),⁹ and conditioned all uses on complying with all Part 25 rules.¹⁰ In fact, the Commission specifically noted that any use “must provide for the protection of 2 GHz MSS

⁵ *Service Rules for Advanced Wireless Services in the 2000-2020 MHz and 2180-2200 MHz Bands*, 27 FCC Rcd. 16102, ¶ 10 (2012) (“*AWS-4 Order*”) (emphasis added) (footnote omitted).

⁶ *Id.* ¶ 10 & n. 39 (citing *Fixed and Mobile Services in the Mobile Satellite Service Bands at 1525-1559 MHz and 1626.5-1660.5 MHz, 1610-1626.5 MHz and 2483.5-2500 MHz, and 2000-2020 MHz and 2180-2200 MHz*, 25 FCC Rcd. 9481, ¶ 6 (2010)).

⁷ *See, e.g.*, DISH NETWORK CORP., DISH Network Corporation 5G Buildout Status Report, WT Docket No. 22-212, 6-7, Attachment A (filed July 14, 2022), available at <https://www.fcc.gov/ecfs/document/10714418910058/1>.

⁸ *See* DISH NETWORK CORP., Annual Report Pursuant to Section 13 or 15(d) of the Securities Exchange Act of 1934 for Fiscal Year Ended December 31, 2021, F-39 (2022), available at <https://dish.gcsweb.com/staticfiles/4e8db017-b1d9-4d94-a208-1233a1770f95>.

⁹ *See AWS-4 Order* ¶ 186.

¹⁰ *Id.* ¶ 19.

systems from harmful interference caused by AWS-4 systems”¹¹ and specifically promulgated a rule to that effect.¹² Thus, the Commission was unequivocal that DISH would provide both its authorized satellite service *and* a new terrestrial wireless service that would operate on a non-interference basis with respect to MSS operations. DISH endorsed this approach, arguing:

[t]he benefits of terrestrial broadband need not, and should not, come at the expense of MSS. The Commission’s proposal aims both to advance broadband deployment and preserve MSS in the 2 GHz band for good reason. MSS remains an important service for government and commercial users within the United States and overseas.¹³

Yet, DISH now tries to flip the whole construct on its head, arguing for protection of its terrestrial uses while abandoning its satellite operations altogether.¹⁴ Indeed, DISH has gone so far as to willfully allow its satellite rights to expire. DISH’s abandonment of its satellite rights and failure to deploy any MSS service in the band should cause the Commission to question whether DISH’s AWS-4 licenses are now illegitimate. In any case, the Commission should, at a minimum, allow for new satellite operator entry to the 2 GHz band that now lays dormant, while maintaining its rules to protect satellite operations.

The Commission has never wavered in its commitment to MSS service in the 2 GHz band and it is time to realize this vision by opening up the band to new operators who seek to deliver satellite service to American consumers. The Bureau must recognize DBSD’s fifteen-year failure to provide 2 GHz MSS operations in the United States and finally put this spectrum to use for consumers. Accordingly, now that DBSD’s market access authorization has officially expired, the Commission should swiftly put SpaceX’s application out for comment.

¹¹ *Id.* ¶ 419.

¹² *See* 47 C.F.R. § 27.1136.

¹³ *See* Reply Comments of DISH Network Corporation, WT Docket No. 12-70, et al., at 9 (June 1, 2012).

¹⁴ *See* Reply to Opposition of Space Exploration Holdings LLC, ICFS File No. SAT-MOD-20230207-00022 (Apr. 20, 2023) (“DISH Reply”). SpaceX has moved to strike this untimely filing. *See* Motion to Strike, ICFS File No. SAT-MOD-20230207-00022 (Apr. 27, 2023).

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May 10, 2023
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Sincerely,

/s/ David Goldman

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